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Beneficiary Evelyn Jucutan

FILED
Superior Court of California
County of San Francisco
JUL 25 2024
CLERK OF THE SUPERIOR COURT
By Rosie Noguera
Deputy

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN AND FOR THE CITY AND COUNTY OF SAN FRANCISCO

In the Matter of:	) NO. PTR-24-307302
	)
JUCUTAN FAMILY TRUST	) ~~[PROPOSED]~~ ORDER
Dated January 20, 1997,	) REMOVING CO-TRUSTEE
	)
Evelyn Jucutan and Edwin Jucutan,	)
Co-Trustees	) Hearing Date: July 24, 2024
	) Time: 9:00 a.m.
	Dept.: 204

Co-Trustee and Beneficiary Evelyn Jucutan ("Petitioner") having filed the Petition to Remove Co-Trustee ("Petition") and the Petition coming on this 24th day of July, 2024, regularly for hearing in the Probate Department of the above-entitled Court, THE COURT FINDS:

1. Due and legal notice of the hearing of the Petition has been regularly given for the period and in the manner prescribed by law.

~~2. All allegations of the Petition are true~~.

~~3. Petitioner is the daughter of Terry T. Jucutan and stepdaughter of Milagros P. Jucutan, as Trustors of the Jucutan Family Trust dated January 29, 1997, ("Trust")~~.

4. Terry T. Jucutan died on October 27, 2000. Milagros P. Jucutan died on July 26 2021. The Jucutans were survived by six children/stepchildren, namely Petitioner, Edwin Jucutan ("Mr. Jucutan"), Evangeline Jucutan, Eliser Jucutan, Eleanor Agbayani, and Elizbeth Cabanilla, all of whom are the beneficiaries of the Trust.

5. Ever since the passing of Milagros P. Jucutan, Petitioner has been attempting to serve as Co-Trustee of the Trust. However, Mr. Jucutan has thwarted her efforts and wrongfully refuses to properly work with Petitioner to administer the Trust. Specifically, Mr. Jucutan wrongfully refuses to communicate with Petitioner or to acknowledge his duties as Co-Trustee of the Trust despite the Petitioner's numerous requests. Furthermore, despite the Petitioner's numerous requests, Mr. Jucutan refuses to resign as Co-Trustee despite the fact that he has taken no steps to act as Co-Trustee of the Trust or to comply with his duties as Co-Trustee of the Trust.

6. The main asset of the Trust is the single family residence located at 2190 Revere Avenue, San Francisco, CA, ("Revere Property"). Mr. Jucutan resides in the Revere Property and wrongly has refused, and continues to wrongfully refuse, to take the proper actions to change the title to the Revere Property and to transfer title to the Trust beneficiaries as required by the Trust despite repeated demands by the Petitioner.

7. A trustee may be removed on a petition of a settlor, co-trustee or beneficiary under Prob. Section 17200 (Prob. Code Section 15642(a)).

8. The statutory grounds for removal of a trustee by the court include (i)

where hostility or lack of cooperation among co-trustees impairs the administration of the trust and (ii) where the trustee fails or declines to act (Prob. Code Sections 15642(b)(3) and (4)).

9. Hostility between the trustee and the beneficiaries that impairs the administration of the trust may provide good cause for removal. *Estate of Gilmaker* (1962) 57 Cal.2d 627, 632; *Overell v. Overell* (1926) 78 Cal.App.251; *Brown v. Memorial Nat'l Home Foundation* (1958) 162 Cal.App.2d 513. Mr. Jucutan's continued wrongful refusal to honor and comply with his duties as Co-Trustee are causing damage to the Trust beneficiaries which includes the Petitioner.

10. Moreover, a trustee is subject to removal whenever his private interests conflict with his trust duties. A trustee may not, by the slightest impropriety, seek any advantage from the beneficiary. *Estate of Vokal* (1953) 121 Cal.App. 2d 252. Nor may the trustee wield power for the trustee's own "aggrandizement, preference or advantage" to the detriment of the beneficiary. *Jones v. H.F. Ahmanson & Co.* (1969) 1 Cal.3d 93; *Van de Kamp v. Bank of America* (1998) 204 Cal.App.3d 819.

11. As Co-Trustee, Mr. Jucutan has a duty to work with the Petitioner and to administer the Trust according to the Trust instrument (Prob. Code Section 16000). In the instant case, upon the death of the surviving spouse, the Co-Trustee had a duty to work with the Petitioner to divide the estate and distribute the assets according to the Trust's terms. Paragraph C of ARTICLE FIVE of the Trust.

12. The Petitioner has been unable to administer the Trust and divide and distribute the assets because of Mr. Jucutan's continued wrongful refusal to honor and comply with his duties as Co-Trustee. "The law . . . does not require an

executor or trustee to proceed 'as quickly as possible'; it requires him to proceed without 'unreasonable delay [Citation]. *Estate of Germond* (1971) 4 Cal.3d 573,580.

13. A trustee owes trust beneficiaries a fiduciary duty, which can consist of several specific tasks. These include the duty of loyalty, the duty to act with ordinary care with regard to trust assets, the duty to act impartially with regard to trust beneficiaries, the duty to collect trust assets, and the duty to administer the Trust according to its terms (Prob. Code Sections 16000-16014). Mr. Jucutan has breached all of the aforementioned duties.

14. Based on Mr. Jucutan's continued wrongful acts and breach of his duties as Co-Trustee of the Trust, in accordance with Prob. Code Section 17200(b)(10), Petitioner brings this Petition to remove Mr. Jucutan immediately as Co-Trustee of the Trust for breaches of trust (Prob. Code Section 16400). Paragraph A of ARTICLE XII of the Trust provides, in pertinent part: "In the event either of them (i.e., the successor Co-Trustees) should become incompetent or otherwise be unable or unwilling to serve, then the other shall serve alone as Trustee hereof."

15. In addition, Petitioner brings this Petition to surcharge Mr. Jucutan for his breaches of trust (Prob. Code Sections 16400 and 17200(b)(12)). Remedies for breach of trust include any loss in the value of the trust estate resulting from the breach of trust with interest (Prob. Code Sections 16440(a)(1) and 16441). In this case, Petitioner seeks lost rental income on the Revere Property.

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AF 2. ~~16.~~ The following persons entitled to notice of these proceedings are:

Edwin Jucutan 2190 Revere Street San Francisco, CA 94124 Co-Trustee and Beneficiary	Eliser Jucutan 2190 Revere Street San Francisco, CA 94124 Beneficiary

Evangeline Jucutan
2190 Revere Street
San Francisco, CA 94124
Beneficiary

Elizabeth Cabanilla
849 Foothill Drive
Vallejo, CA 94591
Beneficiary

Eleanor Agbayani
2701 Blossom Circle
Stockton, CA 95212
Beneficiary

3. ~~17.~~ No request for special notice has been filed in this matter.

NOW, THEREFORE, IT IS HEREBY ORDERED AND ADJUDGED, that:

1. Edwin Jucutan ~~shall immediately be~~ is removed as Co-Trustee of the Trust.
2. ~~The Petitioner shall be~~ Evelyn Jucutan is confirmed as the sole successor Trustee of the Trust.

~~3. Petitioner, as Trustee, shall be entitled to recover lost rental income on the Revere Property accruing from July 26, 2021, the date of death of Milagros P. Jucutan.~~

~~4. Petitioner shall recover from Edwin Jucutan her reasonable attorneys' fees and costs.~~

~~5. For such other and further relief as the Court may deem proper.~~

Dated: 2-24, 2024.

Stephen M. Murphy
JUDGE OF THE SUPERIOR COURT
STEPHEN M. MURPHY

[~~PROPOSED~~] ORDER REMOVING CO-TRUSTEE